



Concessionary Travel For Handicapped Persons (Scotland) Act 1980

1980 CHAPTER 29

An Act to enable local authorities in Scotland to provide concessionary travel schemes for handicapped persons; and for connected purposes. [23rd May 1980]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Without prejudice to the Travel Concessions Acts 1955 and 1964, any local authority operating a public service vehicle undertaking may make arrangements for the granting of travel concessions to handicapped persons travelling on the public service vehicles run by the authority, or on any of those vehicles to which the arrangements relate. Travel concessions for handicapped persons.
1955 c. 26.
1964 c. 95.

(2) The provisions of subsections (1), (3) and (4) of section 138 of the Transport Act 1968 (arrangements as to travel concessions to be granted by Passenger Transport Executive or by other person) shall apply in relation to handicapped persons as those provisions apply in relation to persons mentioned in subsection (5) of that section. 1968 c. 73.

(3) A local authority may contribute to any cost incurred by any other local authority in granting travel concessions under this Act.

Interpretation.

2.—(1) In section 1 of this Act—

“handicapped persons” means persons who, not being qualified persons within the meaning of the Travel Concessions Acts 1955 and 1964—

1960 c. 61.

(a) suffer from mental disorder within the meaning of the Mental Health (Scotland) Act 1960 ;

(b) are deaf or dumb ; or

(c) are substantially and permanently handicapped by illness, injury, defective hearing, defective sight or congenital deformity or by such other disabilities as may be prescribed by the Secretary of State by regulations :

“ local authority ” means a regional or islands council :

“public service vehicle” has the same meaning as in the Public Service Vehicles (Travel Concessions) Act 1955, and “public service vehicle undertaking” shall be construed accordingly; and

1955 г. 26.

"travel concession" has the same meaning as in the said Act of 1955.

(2) The power to make regulations under subsection (1)(c) above shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Expenses.

3. There shall be defrayed out of money provided by Parliament any increase attributable to this Act in the sums payable out of such moneys under any other Act.

**Short title,
and extent.**

4.—(1) This Act may be cited as the Concessionary Travel For Handicapped Persons (Scotland) Act 1980.

(2) This Act extends to Scotland only.